

BOF

Conversation 042: *Patent Dispute Prior Use*

conversation ID: 77b3b902-37b0-4850-b5fe-b1e421de132d [conversation 042]

origin ID: 77b3b902-37b0-4850-b5fe-b1e421de132d [conversation 042]

created: 2024-07-21 21:31:18 Sun

updated: 2025-02-24 16:41:48 Mon

operator: Wilder Blair Munro (AKUSA)

co-operator: Aurora 4omni Munro (ChatGpt)

GPT ID: NA

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Subtitles:

Turnpair Contents:

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- **Negotiation:** Sometimes, parties can reach an agreement or licensing deal without litigation.
- **Litigation:** If the patent holder decides to sue, you would need to defend yourself in court, potentially using the prior user rights defense or attempting to invalidate the patent.

5. Continuing Your Business: You should carefully assess the risks with your attorney. They can advise you on whether it's safe to continue your business operations as usual or if adjustments are needed.

Remember, the specifics of each situation can vary, and the advice of a qualified patent attorney is crucial to navigate these issues effectively.

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Conversation 042, Turnpair 2 of 7 ::

@ 2024-07-21 21:33:36 Sun [Δt 0d 00h 02m 07s]

conversation ID: 77b3b902-37b0-4850-b5fe-b1e421de132d [conversation 042]
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created: 2024-07-21 21:31:18 Sun
updated: 2025-02-24 16:41:48 Mon
GPT ID: NA

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Is it possible for a detailed creative concept to be protected under copyright law, if it is properly documented with a portfolio of created content? (eg, writings, videos, etc)

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Aurora 4omni Munro (ChatGpt) said :

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Yes, a detailed creative concept can be protected under copyright law if it is properly documented with a portfolio of created content. Copyright law in the United States protects original works of authorship that are fixed in a tangible medium of expression. This includes a wide variety of works such as writings, videos, music, art, and other creative expressions.

Here are key points to understand about copyright protection:

1. **Originality:** The work must be original, meaning it must be independently created by the author and possess some minimal degree of creativity.
2. **Fixed in a Tangible Medium:** The work must be fixed in a tangible medium of expression. This means it must be recorded in some way, such as written down, filmed, recorded, or otherwise captured so that it can be perceived, reproduced, or communicated.
3. **Scope of Protection:** Copyright protection applies to the specific expression of an idea, not the idea itself. This means the detailed creative content you have documented (such as specific writings, videos, scripts, and other materials) can be protected, but the underlying concept or idea cannot be copyrighted.
4. **Portfolio Documentation:** Properly documenting your creative concept with a portfolio of created content helps establish evidence of your authorship and the date of creation. This can be important if you ever need to enforce your copyright or defend against infringement.
5. **Registration:** While copyright protection exists from the moment the work is created and fixed in a tangible medium, registering your work with the U.S. Copyright Office provides additional legal benefits. It is necessary to register the work before you can file a lawsuit for infringement, and registration within five years of publication can serve as prima facie evidence in court regarding the validity of the copyright and the facts stated in the certificate.
6. **Documentation of Development:** Maintaining a comprehensive portfolio that includes drafts, notes, production logs, and other developmental materials can further strengthen your claim to authorship and help demonstrate the evolution of your creative concept.
7. **Rights Granted:** Copyright grants the author exclusive rights to reproduce, distribute, perform, display, and create derivative works based on the original work. Unauthorized use of your copyrighted material by others can be legally challenged.

In summary, if you have a detailed creative concept that is well-documented with writings, videos, and other materials, it can be protected under copyright law, providing you with certain exclusive rights and legal protections.

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What if the creative content itself is what the patent for an invention *would* if that application were submitted to USPTO and all back-and-forth with office and all legal consultation were performed, etc, etc. Does this question make sense? And can you comment on you the motivation for me asking this question that you infer?

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Yes, your question makes sense. It appears you are asking about the distinction between patent protection and copyright protection, particularly in a situation where the creative content itself could be part of a patent application if one were submitted. Here's a detailed explanation and some inferred motivations for your question:

Distinction Between Patent and Copyright Protection

1. Nature of Protection:

- **Copyright:** Protects original works of authorship such as writings, music, videos, and other forms of creative content. It covers the expression of ideas, not the ideas themselves.
- **Patent:** Protects inventions and discoveries. It covers new, useful, and non-obvious inventions or processes. Patents provide the right to exclude others from making, using, or selling the

invention for a limited period.

2. Requirements:

- **Copyright:** Automatically exists once the work is fixed in a tangible medium of expression. Registration is optional but beneficial for enforcement.
- **Patent:** Requires a formal application to the USPTO, including a detailed description of the invention, claims defining the scope of the invention, and often involves a back-and-forth process with the patent examiner. The invention must be novel, non-obvious, and useful.

3. Scope of Coverage:

- **Copyright:** Protects the specific creative content (e.g., text, images, videos). It does not protect the underlying functional ideas, methods, or systems.
- **Patent:** Protects the functional aspects and utility of the invention, including processes, machines, manufactures, and compositions of matter.

Inferred Motivation for the Question

- **Exploring Protection Options:** You might be considering the best way to protect your creative content that also involves functional or innovative aspects. You could be wondering whether copyright alone is sufficient or if pursuing a patent would provide more comprehensive protection.
- **Overlap of Creative and Functional Elements:** If your creative content has elements that could be considered an invention (e.g., an innovative method or system described in a detailed video or writing), you might be thinking about how to protect both the creative and functional aspects.
- **Strategic Decision Making:** You might be trying to decide whether to invest in the patent application process, given its complexity and cost, or rely on copyright protection for your creative content.

Commentary on the Situation

- **Complementary Protections:** It is possible to have both copyright and patent protections for different aspects of the same work. For example, the creative expression (script, video) can be protected by copyright, while the functional invention described in those materials can be protected by a patent.
- **Evaluating Invention Criteria:** If the functional aspects of your creative content meet the criteria for patentability (novelty, non-obviousness, utility), it might be worth considering a patent application to protect those aspects. Consulting with a patent attorney can help determine the patentability and potential value of pursuing a patent.
- **Comprehensive Protection Strategy:** Combining both copyright and patent protections can provide a robust defense against infringement. Copyright protects your creative expression, while a patent can protect the innovative functional aspects, giving you broader and more enforceable rights.

In summary, if your creative content includes potentially patentable inventions, it might be wise to explore patent protection in addition to relying on copyright. This approach ensures comprehensive protection of

both the creative and functional elements of your work.

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Conversation 042, Turnpair 4 of 7 ::

@ 2024-07-21 21:56:50 Sun [⌚ 0d 00h 17m 29s]

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No. Here is the situation. I created a business model that generates inventions quickly, and the only way to ensure their profitability is to ship to market quickly, while also leveraging (public) crowdsourcing to generate the intellectual contributions necessary to make a particular invention case refined enough to be economically viable. I must assume that I cannot access lenders for cash to afford the patent application process in the development phase (this is a design constraint, not a circumstance).

I followup with a tangential, but essential, question about copyright work instead:

Harry Potter is a book that has copyrights belonging to the publisher and author. I could take the book and translate it into a new version that is the same exact story, same details, but in my own world's language (my colloquialisms, my specific one-to-one interpretations of scenes in book, but definitely a version that a large set of people in my world would understand as the exact same Harry Potter book, but only they would know that because only they know my world's language). This would be infringement, certainly. The novelty and originality of the harry potter book, the copyright itself, protects the *story*, meaning the specific set of concepts that comprise the story. If I were to create a harry potter movie (cinema--speech and video--media) for the book, (well before the harry potter movie was filmed), then I would certainly found of copyright infringement of the textual book. I understand that ultimately these determinations are made according to interpretations of the law, but the fact I think remains that it is the underlying concepts that form the words of a copyright protected work that determines its status as a work copywritten or

Relation to Your Business Model

Given your business model of rapidly generating inventions and leveraging public crowdsourcing, the key points to consider include:

1. **Crowdsourcing Contributions:** Ensure clear agreements with contributors regarding the ownership and usage of their contributions to avoid future disputes.
2. **Market Speed vs. Patent Protection:** If the nature of your inventions and the need for speed to market preclude the traditional patent process, alternative strategies might include trade secrets, rapid iteration and development cycles, and leveraging first-mover advantage.
3. **Protecting Original Works:** While patents may be challenging to secure quickly, copyright can protect original documentation, designs, and media content associated with your inventions.
4. **Public Disclosure Risks:** Be mindful that public disclosure of an invention before filing a patent application can affect patentability. Prioritize protecting truly novel and non-obvious aspects of your inventions.

Inference and Conclusion

Your ultimate question likely revolves around how to protect rapidly developed and publicly crowdsourced inventions when traditional patent processes are not feasible. Here are some strategic approaches:

- **Trade Secrets:** Keep critical aspects of your inventions confidential to maintain a competitive edge.
- **Rapid Commercialization:** Use your speed to market as a key advantage, outpacing potential competitors who might try to replicate your work.
- **Documenting and Copyrighting:** Protect the creative aspects of your business model through robust documentation and copyright, ensuring you have legal recourse against direct copying.

Your situation requires a nuanced strategy that balances the need for speed with available legal protections. Let me know your ultimate question, and we can delve deeper into tailored solutions for your unique scenario.

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Conversation 042, Turnpair 5 of 7 ::

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Here is the ultimate question (longform with prefacing):

Expression vs. idea critique:

The resolution (granularity of detail) describing a thing is what determines the difference between an idea and an expression, so long as the idea is fully rooted in the first principles of known reality. For example, the idea could be, 'big thing made of magic material that takes long rod of same magic material stuck inside it like a rod through a toroid and rotates rod about axial axis, and this is only possible because magic is a naturally occurring phenomenon that we understand, and the magic only works if we take long strings of the same material as the rod and donut, but it doesn't stick to itself naturally, and we coat it with a material orthogonal to the longstrings so long strings would never touch if wrapped, and the long strings are magical because we know that we can use them as pipes to put magic energy then make it flow places because magic builds up and naturally flows into regions where there is no magic if there is a path for it via the magic material. so we wrap the magic string in a very specific way around the rod, then we put a couple little clever magic material devices with orthogonal material in this exact shape on the rod and in the toroid, and then the toroid in this magical thing is a shell where on the inside, surrounding the rod with specifically coiled magic material with a different kind of magic material that naturally attracts to itself or repels depending on how you flip it. Mount the rod and coil so that it can't deviate from axial center, then provide inlet outlets for the magic string so that we can hook it up to a magic source and sink, and there we have it: we just invented the DC magic motor. I could call all the corresponding forces and effects different magic names, like dark magic induction, the Harry Potter Force, magicnetic attraction and repulsion, magictal, magictricity, etc. I could explicitly define these materials in terms of how they are found and characterized (magic metal is malleable, it conducts the magictricity, which come ultimates from little magic balls that stabilize the core objects comprising all the stuff we know as --everything around us. Earth, dirt, air, water, etc. I could write this down decades before the first electric motor were invented, without even knowing that metal had been discovered, I just asserted it's inevitable existence. Then that electric motor could be patented, and you would probably tell me that it does not infringe on my magic motor, because my magic motor is not specific enough to metal, it is just conceptual. But, the paperclip is an example of an (old) simple patent where it was only possible to make metal paperclips, so that was unique enough to grant as not just an idea. But If I were sufficiently clever at the time, then I could have perhaps concocted a way to create a paperclip out of plastic or wood, or whatever. If I were charged with infringement selling my wood paperclips, I wouldn't be able to argue that it's wood and not metal so it's not infringement (criteria for patentability ...novelty, non-obviousness, utility).

But I would not (I do not think) be able to file for a patent if I were the paperclip inventor if I approached with an application that said 'tiny magic thing that clamps together information sheet things in the office instead

of pinning (novelty), the clamp is formed by a single magical rigid string of springy material that is wrapped in a coil such that the coil forms a clamp with two paddles for either side of the paper (non-obviousness), the utility of this clamp is that it can do what pins do for holding paper together, but it does not damage the paper, it is not sharp, and it can hold much larger stacks of paper than a pin (utility). That is not enough to be granted the 'paperclip' patent to protect all possible forms and versions of all future paperclips, even paperclips that hold sheets of information that are not paper, like massive stone tablets, or logical (digital paper). But shouldn't it be...

Question:

I am going to propose a 'demon': imagine a human so smart and well informed that they knew every detail of electromagnetism long before electromagnetism was developed in modern form. This person also had a means of knowing about materials without ever needing to confirm they exist. They file for a patent for the DC electric motor, but to the patent clerks, it sounds like magic described in a harry potter book. However, they do recognize that the language and mechanisms are at conceptually fully compatible with their current language and understanding of physics, and also that the magical parts that went beyond their understanding of physics are logically valid. Say also that the demon provides a way for the clerks to verify without performing experiment, that there is no need for experimental validation for the magical future physics. It is airtight. The clerks know it is a valid patent, but do they grant the patent? Such a magical patent would rely of course on magic language defined strictly in terms of mathematics and known physics. They reject the patent. Later, somebody files for the same patent, but in the language of electromagnetism, and the same experimental validation, same airtight patent. It is approved. Would the ancient magic demon inventor with magic motor patent succeed today if they filed suit against the electric motor inventor as having 'well documented same thing well before thus grounds for successful infringement claim?

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**Aurora 4omni Munro (ChatGpt) said :**

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Your question delves into the intersection of theoretical concepts, the evolution of scientific understanding, and patent law, which is inherently grounded in the practical application of those concepts. Here's a breakdown of the key points and an analysis of the scenario you presented:

## Patent Law and Its Requirements

1. **Novelty and Non-Obviousness:** A patentable invention must be novel and non-obvious to someone skilled in the relevant field at the time of the invention. This means it must represent a new and non-obvious advance over the prior art.
2. **Utility:** The invention must be useful and operable. It must have a specific, substantial, and credible utility.

3. **Enablement:** The patent application must enable a person skilled in the art to make and use the invention without undue experimentation. This requires a detailed description of the invention.
4. **Definiteness:** The claims of the patent must be clear and definite so that others can understand the scope of the protection being sought.

## Scenario Analysis

In your hypothetical scenario, an ancient inventor (the "demon") understands the principles of electromagnetism and describes an invention akin to a DC motor using terms and concepts that sound like magic to contemporary patent examiners. The questions revolve around whether this inventor would be granted a patent and, if not, whether they could later claim infringement when a similar invention is described in modern scientific terms.

## Key Points in the Scenario

1. **Historical Context and Language:** The patent system is based on the knowledge and terminology available at the time of the application. If an invention is described in terms that are not understood or recognized by the current scientific community, it may not meet the enablement and definiteness requirements.
2. **Enablement and Practicality:** Even if the "demon" could theoretically describe the invention in a way that is logically valid, the description must enable someone skilled in the art to reproduce the invention. If the terms and materials are described as magical and cannot be empirically verified or replicated, the application would likely fail the enablement requirement.
3. **Verification and Utility:** For a patent to be granted, the utility must be demonstrable and credible. If the described invention relies on unverified "magical" principles, it would be challenging to meet this criterion without empirical evidence.

## Hypothetical Legal Outcome

Assuming the ancient inventor's description is logically valid but framed in terms of unknown principles or materials:

- **Rejection of Initial Patent:** The initial patent application would likely be rejected due to the inability of contemporary patent examiners to verify the claims, the lack of empirical evidence, and the failure to meet the enablement requirement.
- **Modern Re-application:** When a later inventor files for a patent on the same invention using the language and principles of electromagnetism, with empirical validation, this application would be assessed based on the knowledge and standards of the time.
- **Prior Art and Infringement:** If the original description, despite being rejected, was publicly disclosed or documented in a way that could be considered prior art, it could potentially be used to challenge the novelty of the later patent. However, this is complex and would depend on the specifics of the documentation and whether it meets the criteria for prior art.

Conclusion

In your hypothetical scenario, the ancient inventor would likely not succeed in an infringement claim against the modern inventor because:

1.

The original description, though logically valid, would not meet the practical and empirical standards required for a patent.
2.

The modern inventor's application, based on known and verifiable scientific principles, would be considered novel and non-obvious relative to the prior art available at the time of their filing.
3.

The ancient inventor's documentation would need to be recognized as valid prior art, which is unlikely if it could not be empirically verified and replicated by someone skilled in the art at the time.

Ultimately, patent law is designed to protect practical, operable inventions that can be clearly described, verified, and reproduced using the contemporary knowledge and terminology. The hypothetical scenario underscores the importance of the practical application and verification of scientific principles in the patenting process.

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Conversation 042, Turnpair 6 of 7 ::

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Ok now here is my situation.

I am a new kind of "demon": I am creating a physics that is completely understandable to people with understanding of modern physics and is completely compatible (understandably) with prior art. It extends



theories, although initially theoretical, were later supported by empirical evidence.

3. **Empirical Validation:** Patent examiners rely on empirical validation to assess utility and operability. Even if an invention is theoretically sound, it must be demonstrated to work in practice or be shown to have credible utility.
4. **Material Configurations Considered Impossible:** If your invention employs configurations previously deemed impossible but can be understood and potentially verified through your new physics, it challenges the conventional boundaries of patentability.

## Perfect World Scenario

In a perfect world with perfectly reasonable patent clerks and strict adherence to patent processes:

1. **Detailed Description and Enablement:** Your application must provide a detailed description that enables a person skilled in the art to understand and potentially replicate the invention, even if it initially seems impossible under current physics.
2. **Theoretical Validation:** If your thought experiments are rigorous and align with known principles, they might serve as a bridge to empirical validation, especially if your new physics framework is coherent and self-consistent.
3. **Predictions and Testing:** While immediate empirical validation might not be required, your patent could be granted if the theoretical framework predicts specific, testable outcomes that can be empirically validated in the future.

## Practical Considerations

In reality, patent law emphasizes practical application and empirical validation. Here's how your scenario might be handled:

1. **Provisional Patents:** You might file provisional patents to establish priority while seeking empirical validation for your theoretical inventions.
2. **Collaboration with Experimental Physicists:** Partnering with experimental physicists to test and validate your theoretical predictions could strengthen your patent applications.
3. **Incremental Patents:** Filing patents on incremental advancements that can be empirically validated while continuing to build on your theoretical framework might be a strategic approach.

## Conclusion

In an ideal scenario, if your "demon physics" inventions are theoretically sound, understandable to those skilled in the art, and compatible with existing knowledge, they could be considered for patents. However, empirical validation remains a cornerstone of patentability, ensuring that inventions are not only theoretically plausible but also practically realizable and useful.

In the real world, combining rigorous theoretical frameworks with efforts to empirically validate your inventions would likely enhance the chances of obtaining patent protection and advancing your innovative concepts.

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## Conversation 042, Turnpair 7 of 7 ::

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So I fall back to the patent + copyright idea. Would my demon physics benefit by a strategy of dual protections by 1) filing for demon invention patents (with all the empirical experimental results predicted and with perhaps backing from community that would entertain investing money in fringe demon physics experimentation IFF there were protection in place that would guarantee the demon invention is not stolen or appropriated and they therefore do not profit by successful commercial outcome of invention sales contingent on protection and actual future-demonstrated utility of demon invention; and 2) copyrighting a published text document of what the patent would NECESSARILY read as, should the demon inventor be correct and the demon invention justify patent protection (be this immediately granted, or well after application is rejected, experimental physics inevitably demonstrates demon physics reality, and reapplication is granted) --in other words, the demon physics implies (to be logically self-consistent) that there is only one way for the demon invention patent to read (disregarding trivial variation in precise presentation of the patent's textual content).

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**Aurora 4omni Munro (ChatGpt) said :**

```
gateway: gpt-4o
turn ID: 6007ed98-429f-4e5b-9be2-6ad9e3adb75
parent: aaa2c437-824c-4ac1-8988-808c85499145
children:
```

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Your strategy of combining patent and copyright protections could offer a robust approach to safeguarding your demon physics inventions. Here's a detailed analysis of how this dual-protection strategy might work:

## 1. Filing for Demon Invention Patents

### Empirical Experimental Results:

- Filing for patents based on theoretical predictions from your demon physics, backed by empirical results, is crucial. If you can predict outcomes that can be experimentally verified, this strengthens your patent application.
- Engaging with the scientific community to test and validate these predictions can provide the empirical support needed for patent approval.

### Community Backing and Investment:

- To attract investment, clear protection mechanisms must be in place. Investors need assurance that their investment in testing and developing these theories will be protected.
- Provisional patents or patent applications can serve as initial protection, signaling to investors that steps are being taken to secure intellectual property.

## 2. Copyrighting the Published Text Document

**Copyright Protection:**

- Copyrighting a detailed document that outlines your demon physics and the specific inventions predicted by it provides a layer of protection for your theoretical work.
- This document can serve as a comprehensive record of your ideas and inventions, establishing a timestamped proof of your intellectual contributions.

### Published Text as a Blueprint:

- The document should be detailed enough to serve as a blueprint for your patent applications. If the demon physics is proven correct, the text could essentially become the basis for the patent claims.
- By copyrighting the text, you protect the specific expression of your theoretical framework and predictions, preventing others from copying your exact formulations and descriptions.

## Combined Strategy Benefits

### 1. Initial Protection and Investment Attraction:

- o Copyrighting your detailed theoretical work provides immediate protection for your intellectual contributions.

- Filing for provisional patents or patent applications based on your theoretical predictions, even if empirical validation is pending, signals to investors that there is a pathway to securing exclusive rights.

## **2. Empirical Validation and Patent Approval:**

- As empirical validation progresses and your theoretical predictions are proven correct, your patent applications gain strength. The detailed copyrighted text can serve as a reference for ensuring that your patent claims are comprehensive and aligned with your initial theories.
- If initial patent applications are rejected, the copyrighted document serves as a persistent record of your original ideas and predictions, facilitating future applications once empirical validation is achieved.

## **3. Legal Recourse and Enforcement:**

- If someone attempts to infringe on your work, the combination of copyright and patent protections provides multiple avenues for legal recourse. Copyright protects your specific descriptions and formulations, while patents protect the functional aspects of your inventions.

## **Practical Steps**

### **1. Document Everything:**

- Maintain detailed records of your theoretical work, predictions, and any empirical validation efforts. This documentation will be crucial for both copyright and patent applications.

### **2. File for Copyright:**

- Copyright the comprehensive text that outlines your demon physics, the theoretical predictions, and the detailed descriptions of the inventions.

### **3. File for Patents:**

- Submit patent applications for the inventions predicted by your demon physics, including any empirical data that supports these predictions. Consider filing provisional patents initially to establish priority while continuing validation efforts.

### **4. Engage with the Community:**

- Collaborate with scientists and researchers to test and validate your theoretical predictions. Secure investment by demonstrating the potential for exclusive rights and commercial viability.

### **5. Iterate and Update:**

- As empirical validation progresses, update your patent applications and copyright registrations to reflect new findings and ensure comprehensive protection.

By combining patent and copyright protections, you create a multi-faceted strategy that safeguards your intellectual property, attracts investment, and provides a pathway for legal enforcement. This approach

leverages the strengths of both forms of protection to address the unique challenges posed by groundbreaking theoretical work and its practical applications.

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